

Court No. - 3

Case :- WRIT - C No. - 13811 of 2016

Petitioner :- Som Pal Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sunil Kumar Srivastava

Counsel for Respondent :- C.S.C.,Shivam Yadav

Hon'ble Krishna Murari,J.

Hon'ble Vinod Kumar Misra,J.

Shri Neeraj Tripathi, who has accepted notices on behalf of respondent no. 4, prays for and is allowed a week's time to seek instructions in the matter.

Put up as fresh on 6th April, 2016.

Order Date :- 30.3.2016

VKS

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Petitioner :- Som Pal Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sunil Kumar Srivastava

Counsel for Respondent :- C.S.C., Neeraj Tiwari, Shivam Yadav

Hon'ble Krishna Murari, J.

Hon'ble Vinod Kumar Misra, J.

Heard learned counsel for the petitioner and Sri Neeraj Tiwari appearing for the respondent-Corporation.

Petitioner has challenged the recovery citation dated 18.02.2016 whereby a sum of Rs. 1,87,200/- is being realized from the petitioner towards consumption of electrical energy.

On 30.03.2016, Sri Neeraj Tiwari, learned counsel for the respondents-Corporation was granted time to seek instructions in the matter. He has produced before us the copy of surprise inspection of petitioner's premises which was carried out on 25.11.2015, wherein, it was found that petitioner was unauthorizedly using electrical energy for commercial purposes even though his connection was for residential use only. Thereafter, the respondent authorities issued a provisional assessment notice to the petitioner dated 09.12.2015 calling upon him to submit its reply within fifteen days. The petitioner asserts that the notice dated 09.12.2015 was actually not served upon the petitioner and, as such, no objection could be filed by the petitioner. It is contended on behalf of petitioner that since he did not receive the copy of the provisional assessment, as such he could not submit his reply and in absence whereof the respondent treated it to be final and issued recovery certificate

Learned counsel for the petitioner has invited the attention of the Court to provisional assessment notice dated 09.12.2015, service whereof upon the petitioner is disputed. The fact that petitioner has not been served with the provisional assessment notice, has also been asserted in Para 13 of the writ petition. The argument of the learned counsel for the petitioner is that in the absence of service of provisional assessment, the petitioner could not file his objection and his statutory right to submit a reply has been denied to him. Submission also is that the respondents have proceeded to issue the recovery citation pursuant to the provisional assessment order, without actually passing any order of final assessment. Reliance has been placed

upon the observation made by this Court in **Writ-C No. 24772 of 2012 (Vinod Kumar Agarwal Vs. State of U.P. and others), decided on 10.7.2012.** Relevant extract of the judgment dated 10.7.2012 is reproduced:-

"2. On 30.5.2012, we passed following orders as follows:-

".....Since large number of cases are coming from all over Uttar Pradesh in which citations are being issued under the U.P. Government Electricity Undertaking (Recovery of Dues) Act, 1958, without making any final assessment, we direct the Managing Director of the U.P. Power Corporation to issue strict instructions to all the corporations distributing electricity, and the Executive Engineers of the Electricity Distribution Divisions of these Corporations, to comply with the provisions of Section 126 of the Electricity Act, 2003. They may be given strict instructions not to issue any recovery certificate until and unless a final assessment is made in theft case, after giving opportunity to the consumers under Section 126 (1) of the Act. Even if no objection has been filed, sub-section (3) of Section 126 provide that the Executive Engineer will record finding that the provisional assessment order was served upon the consumer and thereafter make final assessment by a reasoned order. If the objections have been filed, the Executive Engineer must consider these objections in his order before making final assessment and issuing recovery certificate.

The Managing Director, U.P. will comply with this order and submit report to the Court. The Registrar General will sent a copy of this order to the Managing Director of U.P. Power Corporation, Shakti Bhawan, Lucknow. Since large number of cases are pending in this Court, the Managing Director will also consider to withdraw the recoveries in which no final assessment order has been passed. The recoveries will be sent in future only in those cases in which final assessment orders are passed by the Executive Engineer, and which will also enable the consumer to get an opportunity to file an appeal under Section 127 of the Act.

List on 10th July, 2012."

3. Shri Mahboob Ahmad has filed an affidavit of Shri Awanish Kumar Awasthi, Chairman and Managing Director of U.P. Power Corporation Ltd, Shakti Bhawan, 14 Ashok Marg, Lucknow in compliance with the aforesaid orders. Along with the affidavit he has annexed an order dated 30.6.2012 passed by him in which he has quoted Section 126 of the Electricity Act, 2003, and Clause 6.8 of the U.P. Electricity Code, 2005 and has directed all the Corporations distributing electricity and the

Executive Engineers of the Electricity Distribution Divisions to strictly follow the procedures prescribed under Section 126 of the Act and under Clause 6.8 of the Electricity Supply Code, 2005 and not to issue any recovery certificates, until and unless final assessment is made in theft case, after giving reasonable opportunity of hearing to the consumer/user under sub-section (3) of Section 126. The order, under sub-section (3) of Section 126, shall be passed within 30 days from the date of service of provisional assessment. He has also directed that the recoveries already issued without making final assessment should be withdrawn forthwith, but the same shall be issued again immediately after passing an order of final assessment and all such matters, in which recoveries are withdrawn, shall be finalized within a period of three months from the date of its withdrawal. In the last paragraph of the order dated 30.6.2012, the Chairman & Managing Director, U.P. Power Corporation Limited has directed all the officers to ensure that the recoveries will be sent in future only in those cases in which final assessment order has been passed, failing which necessary action shall be taken against the concerning/authorized officers."

(Emphasis supplied by us)

Learned counsel for the respondents has, on the other hand, attempted to justify the recovery on the ground that the provisional assessment notice was served and as no objection was filed, the same was treated as final assessment in pursuance to Section 126(3) of the Electricity Act, 2003 and thereafter, recovery proceedings have rightly been issued.

Having considered the rival submission advanced on behalf of learned counsel for the parties, this Court finds that there is nothing on record to show that the provisional assessment notice dated 09.12.2015 was actually dispatched or served upon the petitioner. The Court also finds substance in the argument advanced by learned counsel for the petitioner that provisional assessment notice issued does not contain necessary ingredients required under Clause 6.8 (1)(b) of the U.P. Electricity Supply Code, 2005 inasmuch as from the perusal of the provisional assessment notice, it does not appear that any date or time was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, has substance.

This Court in **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005,

to be followed in a case of theft of electricity for assessment.

As the petitioner has not been afforded opportunity of hearing in the matter as is mandatorily warranted under Clause 6.8 (1) (b) of the U.P. Electricity Supply Code, 2005, and even otherwise, no order of final assessment has been passed containing satisfaction of the authority about service of provisional assessment notice as is required in law, therefore, the impugned recovery proceeding cannot be sustained and is liable to be set-aside.

Consequently, the writ petition is allowed. The impugned recovery citation dated 18.02.2016 for recovery of electric dues Rs. 1,87,200/- and all consequential proceedings thereto are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve it upon the petitioner. The final assessment order will be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in Ashok Kumar (supra).

Order Date :- 6.4.2016

Dcs